IN THE HIGH COURT OF DELHI AT NEW DELHI

CS(COMM) 188/2025

Orion Retail Limited v Brightwave Systems Private Limited

WRITTEN STATEMENT on behalf of the Defendant

1. The suit is denied. The Defendant answers the Plaint as set out below.

2. Milestone 1 under the SOW was accepted on 15 February 2024, as the Plaintiff itself confirmed by its e-mail dated 16 February 2024.

3. There was no delay beyond the extended due date of 31 January 2024 that is attributable to the Defendant.

4. It is denied that the Plaintiff is entitled to liquidated damages.

Dated this 20 June 2025

Advocate for the Defendant